



Costs Decision

Site visit made on 15 September 2026

by **C Walker BA (Hons) DipTP MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 18 September 2026

Costs application in relation to Appeal Ref: 6009645

Grandview House, 94 Broad Street, Guildford, Surrey, GU3 3BE

- The application is made under the Town and Country Planning Act 1990, sections 78, 322 and Schedule 6, and the Local Government Act 1972, section 250(5).
 - The application is made by Evan Leighton-Davis for a partial award of costs against Guildford Borough Council.
 - The appeal was against the failure of the Council to issue a notice of their decision within the prescribed period on an application for a proposal described in the application form as 'construction of a chalet-style dwelling to replace approved incidental outbuilding (24/P/00189) at rear of Grandview House'
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Decision

1. The application for an award of costs is refused.

Reasons

2. Parties in planning appeals normally meet their own expenses. However, the Planning Practice Guidance (PPG) advises that costs may be awarded against a party who has behaved unreasonably and thereby caused the party applying for costs to incur unnecessary or wasted expense in the appeal process.
3. Although costs can only be awarded in relation to unnecessary or wasted expense at the appeal or other proceeding, behaviour and actions at the time of the planning application can be taken into account in determining whether or not costs should be awarded. An award of costs may either be procedural, relating to the appeal process, or substantive, relating to the planning merits of the appeal. In this case the costs application is made on procedural grounds.
4. Paragraph 049 of the PPG cites various examples of unreasonable behaviour that could apply to local planning authorities, including by preventing or delaying development which should clearly be permitted, having regard to its accordance with the development plan, national policy and any other material considerations.
5. The applicant submits that the Council has acted unreasonably by preventing or delaying development through a prolonged and systematic failure of its development management function, resulting in the unnecessary expense of lodging the appeal. They point to the statutory determination period expiring without a decision being issued, the Planning Guarantee period having been exceeded resulting in the refund of the planning fee, repeated reallocation of the case and a lack of engagement on the Council's part during the application process.
6. The evidence indicates that the application was validated by the Council on

- 3 December 2025, the same day that it received the missing information to meet the national validation requirements. The target decision date was 28 January 2026.
7. The Council cites large officer caseloads and staff turnover as the chief reasons for the delay in issuing a decision. It also accepts that it should have engaged with the applicant more proactively earlier in the process. Once the case had been reassigned for the third time, it appears to have been given to a more senior officer with management oversight, indicating that the Council were making best endeavours to remedy previous and accepted shortcomings.
 8. The evidence indicates that officers subsequently engaged with the applicant. For example, on 24 April 2026 they contacted the applicant to arrange a site visit and provided assurances that the application would be determined as soon as possible. By that stage, however, it appears the applicant had lost confidence in the Council's ability to meet its commitments. After giving the Council a deadline of 13 May 2026 for the determination of the application, which was not met, the applicant then appealed on 21 May 2026 on the grounds of the Council's failure to determine the application within the prescribed period.
 9. It is clear that some two-way communication occurred between the principal parties during the application process. However, the Council's failure to determine the application within the statutory timeframe resulted in an excessive delay and amounted to unreasonable behaviour. The Council subsequently produced an Officer's Report assessing the proposal's merits, indicating that planning permission would have been refused on several grounds had it been able to do so. Consequently, even if the application had been determined in a timely manner, it is likely that the applicant would still have needed to pursue an appeal.
 10. The evidence shows that, although the Council requested mitigation information relating to the effects of the proposal on the Thames Basin Heaths Special Protection Area, this matter remained unresolved by the applicant at the appeal stage. Likewise, the concerns identified in the Officer's Report were not addressed by the applicant during the appeal. This further suggests that raising these matters earlier in the process would not have altered the outcome.
 11. Indeed, as set out in the appeal decision, I reached conclusions similar to those of the Council on three of the matters in dispute. In these circumstances, although the Council acted unreasonably in delaying determination of the application, it did not prevent or delay development that ought to have been permitted when assessed against the development plan, national policy and other material considerations. Accordingly, while the Council's conduct was unreasonable, it did not cause the applicant to incur wasted or unnecessary expense, as an appeal would have been inevitable in any event.

Conclusion

12. On the basis of the evidence before me, I conclude that it has not been demonstrated that the Council's unreasonable behaviour caused unnecessary or wasted expense in so far as an award of costs could be justified. I therefore determine that the costs application should fail and no award is made.

C Walker

INSPECTOR